

24STCV18991 24STCV18991

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV18991 Hearing Date: July 22, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MONIQUE

AUSTIN,

Plaintiff,

vs.

FCA

US, LLC,

Defendant.

Case No.:

24STCV18991

Hearing

Date:

July 22, 2026

ORDER

GRANTING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Plaintiff Monique Austin

("Austin") entered into a warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2017 Chrysler 200 ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly was aware of the subject vehicle's defects and failed to disclose the existence of defects at all times to Austin. Austin sued GM for five causes of action.

On July 22, 2026, FCA filed the instant motion for summary judgment, or, in the alternative, summary adjudication. No party opposes.

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc.[1] § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

The

“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

IV. DISCUSSION

FCA requests the Court grant summary judgment as the subject vehicle was not a new motor vehicle and Austin cannot demonstrate FCA failed to repair the subject vehicle.

A. Statement of Facts

Austin purchased the subject vehicle as a used vehicle from Southgate Auto, Inc., an independent dealership not permitted to sell new vehicles manufactured by FCA. (UMF 4-7.) The subject vehicle was not a certified pre-owned vehicle, nor was it accompanied by any warranty offered by FCA. (UMF 8.) At the time of purchase, the vehicle’s initial warranty had expired. (UMF 9.)

On or around March 21, 2019, Austin presented the vehicle to an FCA-authorized dealership at approximately 66,450 miles. (UMF 10.) Austin declined to have the dealership perform the work request. (UMF 10.) At the time of the visit, the car’s mileage exceeded the 36,000-mile limit on the FCA US Basic Limited Warranty and the powertrain warranty. (UMF 10.) There is no evidence to support other repair attempts by FCA or FCA authorized repair facilities. (UMF 11-12.)

B. Song-Beverly

Act Claims

FCA first requests the

Court grant summary judgment as to the causes of action for violation of Civil Code section 1793.2, subdivision (d), violation of Civil Code section 1793.2, subdivision (b), and violation of Civil Code section 1793.2, subdivision (a)(3), as said sections only apply to new motor vehicles.

Civil Code section 1793.2

only applies when a manufacturer of “consumer goods” has made an express warranty. (Civ. Code § 1793.2, subd. (a).) Pursuant to Civil Code section 1791, subdivision (a), “consumer goods” means any new product or part thereof that is used, bought, or leased. A previously owned car is not considered to be a consumer good, for purposes of this section, even if it still has a remaining balance of the original warranty issued by the manufacturer. (Rodriguez v. FCA US, LLC (2022) 77 Cal.App.5th 209, 215.)

As it is undisputed Austin

purchase the subject vehicle, used, from an unauthorized dealer, Austin cannot bring a successful claim for violation of Civil Code section 1793.2, as a matter of law. The Court enters summary judgment as to the first three causes of action.

C. Breach

of Implied Warranty

FCA requests the Court

grant summary judgment as to the cause of action for breach of implied warranty as FCA was not a distributor or seller of a used good. “Only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods.” (Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 398.)

The evidence demonstrates

Austin purchase the subject vehicle, used, from a non-FCA authorized dealership. As neither FCA nor an FCA-authorized dealership sold or distributed the subject vehicle, the Court grants summary judgment as to this cause of action.

D. Fraudulent

Inducement - Concealment

FCA finally requests the

Court grant summary judgment as to the cause of action for fraudulent inducement as FCA made no knowingly false representation to Austin with intent to deceive. "The elements of fraud that will give rise to a tort action for deceit are: " '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974.)

There is no evidence to

demonstrate FCA ever made any representation, fraudulent or otherwise, to induce Austin in any manner. Austin purchased the subject vehicle from an unaffiliated dealer; FCA did not benefit from Austin purchase, given the lack of association. There is no evidence to support misrepresentation or intent to defraud.

FCA has met its burden of

demonstrating there is no dispute of material fact as to all causes of action. The burden shifts to Austin, who did not oppose this motion. Therefore, the Court grants summary judgment.

V. CONCLUSION

Defendant FCA US, LLC's

motion for summary judgment is GRANTED.

FCA is to give notice.

DATED:

July 22, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.